

20STCV47735 20STCV47735

County: los-angeles

Division: Civil Law and Motion

Department: 406

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Case Number: 20STCV47735 Hearing Date: August 3, 2026 Dept: 406

ROSALINA HARRIS,

Plaintiff,

v.

COUNTY OF LOS ANGELES,

et al.,

Defendants.

Case No.: 20STCV47735

Hearing Date: August 3, 2026

[TENTATIVE]

order RE:

defendants' motion for summary judgment
or adjudication (CRS# 5481)

I. BACKGROUND

a. Plaintiff's Action Against
the County (20STCV47735)

On December 14, 2020, Plaintiff Rosalina

Harris filed this action against Defendants County of Los Angeles and Lana Lee

Choi. Plaintiff filed the operative First Amended Complaint on March 29, 2021. The complaint asserts (1) breach of contract, (2) breach of the duty of good faith and fair dealing, (3) municipal liability, (4) professional negligence, (5) breach of fiduciary duty, and (6) negligent infliction of emotional distress.

Plaintiff is a police officer who was sued in federal district court and held liable for the wrongful arrest of her neighbor, Crystal Holmes. Plaintiff alleges that the County failed to adequately defend and indemnify her in accordance with the parties' agreement. Plaintiff alleges that her personal assets were placed at risk and subjected to enforcement even though she was led to believe otherwise.

This action has been resolved.

b. Plaintiff's Action Against the Attorneys (21STCV32323)

On August 31, 2021, Plaintiff filed an action against Defendants Andrew Pongracz and Seki, Nishimura & Watase, LLP, alleging (1) professional negligence and (2) breach of fiduciary duty. These defendants were attorneys selected by the County to represent Plaintiff in the Holmes action. Plaintiff alleges that Defendants did not adequately represent her interests and failed to raise various defenses, including qualified immunity.

The two actions have been consolidated, with this case (20STCV47735) as the lead case.

c. The Instant Motion

On October 30, 2025, Defendants Pongracz and Seki, Nishimura & Watase, LLP filed the instant motion for summary judgment or adjudication. Plaintiff filed an opposition on February 20, 2026. Defendants filed a reply on March 2, 2026.

II. LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing

party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1101.) To establish a triable issue of material fact, the party opposing the motion must produce “substantial responsive evidence.” (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

III. EVIDENTIARY

OBJECTIONS

Plaintiff's

Objections

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Declaration

of Joseph Esposito

o

Plaintiff's

objections are overruled.

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Declaration

of Andrew Pongracz

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The

following objections are sustained: 13, 24.

0

The

following objections are overruled: 14, 18.

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Plaintiff's

request to strike Defendants' motion under Code of Civil Procedure section 437c(a)(4) is denied. Defendants are not limited to one motion for summary adjudication. (See Code Civ. Proc., § 437c(a)(4) ["This limitation does not apply to motions for summary adjudication"].) The Court does not consider Plaintiff's objections to Defendants' separate statement, as the separate statement is not evidence.

Defendants'

Objections

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Declaration

of Gary Casselman

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The

following objections are sustained: 13-14, 18, 20, 22-24, 28.

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The

following objections are overruled: 1-12, 15-17, 19, 21, 25-27, 29-30.

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Declaration

of Peter Langsfeld

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The

following objections are sustained: 12, 17, 21.

o

The

following objections are overruled: 1-11, 13-16, 18-20.

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Declaration

of Michael Friedman

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The

objections are not pertinent to the Court's ruling on the motion. (See Code Civ. Proc., § 437c(q).)

IV. DISCUSSION

a. Professional Negligence

Defendants argue that they cannot be

liable for legal malpractice because they met the standard of care and did not cause Plaintiff's injuries. Plaintiff's legal malpractice claim is based on Defendants' alleged failure to use reasonable care (Compl. ¶ 26(c)), properly analyze facts and law (id., ¶ 26(f)), treat Plaintiff fairly and reasonably (id., ¶ 26(e)), and timely raise defenses (id., ¶ 26(g)).

1. Defendants'

Actions

Defendants argue that "Pongracz kept

in constant contact with Plaintiff about each step of the Holmes Lawsuit.

(Pongracz Deck, ¶¶ 6, 8, 24.) Pongracz discussed discovery, prepped Harris for her deposition, worked with Harris to find alternate forms of liability coverage in the event LA County chose not to pay. (Pongracz Decl., ¶¶ 6-9.) Plaintiff has not produced any evidence supporting the conclusory allegation that she was not treated fairly, and without evidence, there is no connection to the alleged injury." (Mtn. 20:9-14.) Defendants point out that they succeeded in getting the claims against Plaintiff's husband and daughter dismissed on summary judgment, leaving only the Section 1983 civil rights claim against Plaintiff.

However, this does not foreclose a triable issue over whether Defendants satisfied the duty of care. Defendants simply restate their actions in the Holmes case and then, with no citation to legal authority or expert testimony, conclude that they met the standard of care as a matter of law. Not so. What actions meet the standard of care under the particular circumstances is a question for the trier of fact. Moreover, as discussed below, Plaintiff's experts conclude that Defendants did not meet the standard of care, thus raising a triable issue.

2. Punitive Damages

Defendants failed to secure indemnity from the County for punitive damages. (Plntf.'s Ex. 9 at 130:1-131:3.) According to Plaintiff's experts, this conduct was below the standard of care. (Langsfeld Decl. ¶¶13-14, ¶¶ 21-22.) Defendants argue that the Defense Agreement reserved the County's right not to indemnify for punitive damages. (Sposato Decl., Ex. B.) However, this reservation of rights did not preclude Defendants from seeking indemnity. (See Casselman Decl. ¶ 50 [the County "could chose to pay, but was not required to do so"]; Langsfeld Decl. ¶ 12 ["while the Los Angeles County did not have a statutory duty to automatically indemnify Rosalina Harris for any punitive damages judgment in the Holmes v. Harris case, that does not mean that the County of Los Angeles would absolutely not indemnify Ms. Harris. In my experience and career I have obtained the approval of public entities, including the County of Los Angeles to pay for punitive damages awarded against their agents or employees"].) A reasonable trier of fact may find that indemnity was potentially available, and that Defendants' failure to pursue it was negligent.

Moreover, Defendants did not clearly inform the court that the County would not indemnify the \$1.5 million in punitive damages. Had Defendants done so, the amount may have been reduced or vacated based on Plaintiff's inability to pay. (Casselman Decl. ¶¶ 50-51.) Defendants acknowledge that ability to pay is one of the factors considered in the remittitur analysis. (Reply 13:19-22.) Defendants further acknowledge that "the district court treated Harris's ability to pay as 'a neutral factor' because of the indemnity uncertainty." (Ibid.; Plntf.'s Ex. 6 ["Harris' ability to pay is a neutral factor because it is unknown whether the County will indemnify her"].) Thus, it is possible that had Defendants accurately informed the court

that the County would not be indemnifying for punitive damages, the court would have considered ability to pay as a more significant factor and reversed or reduced the award.

3.

Personal Assets

Plaintiff alleges that Defendants told her “the Holmes claims were not a big deal and that I didn’t need to worry about Holmes’ claims. Andrew Pongracz told me that my personal assets were not at risk as a result of Holmes’ claims, but in reality Holmes has taken my home, cars and other assets I spent my life accumulating. Andrew told me that Holmes’ suit was about revenge against me by a neighbor and that I wouldn’t be homeless or lose my home or assets.” (Plntf.’s Ex. 8, p. 10.) Plaintiff’s experts aver that this was also a breach of Defendants’ fiduciary duty and below the standard of care. (Casselman Decl. ¶¶ 37-38; Langsfeld Decl. ¶ 26.)

Defendants argue that Plaintiff fails to establish causation because she has no evidence that she would have done anything differently (e.g., retain a different attorney, pursue a different litigation strategy) had Pongracz told her the truth. However, it is reasonable to infer that Plaintiff could have taken a different course of action to reduce her exposure had she been accurately informed of the risks. It is for the trier of fact to determine whether Pongracz made the alleged statement and whether it made a difference in the Holmes case.

4. Probable Cause

Plaintiff also claims that Defendants decided to focus solely on proving that Plaintiff had probable cause to arrest Holmes. (Plntf.’s Ex. 3 at 70:12-19, 125:17-127:10.) As a result, Defendants did not introduce evidence of Holmes’ actions preceding the arrest and also dismissed the need for evidence to rebut Holmes’ attacks on Plaintiff’s credibility and character. (Ex. 3 at 125:17-127:10.) Defendants allegedly told Plaintiff that it did not matter if the jury did not like her, because they could prove probable cause for the arrest. (Ibid.) Plaintiff’s experts both agree that this exclusive reliance on probable cause harmed Plaintiff’s defense and fell below the standard of care. (Casselman ¶ 36; Langsfeld Decl. ¶ 25.)

5. Qualified

Immunity

“Government officials enjoy qualified

immunity from civil damages unless their conduct violates ‘clearly established statutory or constitutional rights of which a reasonable person would have known.’” (Jeffers v. Gomez (9th Cir. 2001) 267 F.3d 895, 910.)

Determining the applicability of qualified immunity involves two inquiries: (1) whether the law governing the state official's conduct is clearly established; and (2) whether a reasonable state official would have believed his conduct was lawful. (Ibid.)

Here, it is undisputed that the court

rejected the qualified immunity defense as waived because Defendants failed to timely raise it. (Plntf.'s Ex. 6.) Plaintiff's experts opine that Defendants did not meet the standard of care because they failed to move for dismissal based on qualified immunity prior to trial. (Casselman Decl. ¶¶ 21-25; Langsfeld Decl. ¶ 11.) Defendants argue that the defense would have failed even if Defendants had timely raised it. Specifically, Defendants contend that a reasonable official in Plaintiff's position would not have believed Plaintiff's conduct was lawful because the jury found that Plaintiff lacked probable cause for arresting Holmes and that Plaintiff acted with malice, oppression, or reckless disregard. (See Jeffers, supra, 267 F.3d at p. 910; United States v. Lopez (9th Cir. 2007) 482 F.3d 1067, 1072.)

However, even assuming Defendants are not

liable for failing to raise the qualified immunity defense, the legal malpractice claim is based on other allegations of misconduct. As discussed above, there are triable issues as to whether Defendants met the standard of care in the way they conducted the case, apart from the qualified immunity issue. In other words, Defendants' focus on qualified immunity fails to dispose of the entire cause of action. (See Code Civ. Proc., § 437c(f)(1).)

In sum, triable issues exist as to whether

Defendants are liable for professional negligence.

b. Fiduciary Duty

Defendants argue that they did not breach

their fiduciary duties by favoring the County or letting the County dictate litigation strategy. However, the breach of fiduciary duty claim is based on

more than that. As discussed above, there are triable issues with regards to whether Defendants' conduct in the Holmes action met the standard of care. Therefore, triable issues exist as to whether Defendants are liable for breach of fiduciary duty.

V. CONCLUSION

Defendants Andrew Pongracz's and Seki, Nishimura & Watase, LLP's motion for summary judgment or adjudication is DENIED.